

to be tenant for life, but the Court held that she was merely a trustee (*a*).

10. **Where the words raise a partial trust, the surplus does not result.**—Where the words are construed in equity to raise a partial trust, the devisee or legatee is treated as beneficial owner, subject to the charge, and the *surplus* will not result to the heir or next of kin, but will belong to the devisee or legatee (*b*).

11. **Implied trusts now rather discouraged.**—The current of decisions has of late years set against the doctrine of converting the devisee or legatee into a trustee; [and the Court now refuses to extend the doctrine, and will not imply a trust, unless it appears from the will that such was the intention of the testator (*c*).]

12. **Directions as to maintenance.**—Under the head of trusts which we are now considering, may be classed the cases where property is given to a parent or other person standing or regarded *loco parentis*, with a direction touching the *maintenance* of the children. The first question is, Did the settlor intend to impose a trust, or do the words express only the motive of the gift? Instances where *no trust* is created are, where the bequest is to a person “to enable him to maintain the children” (*d*), or an absolute bequest is made, and afterwards the motive is assigned, as “that he may support himself and his children” (*e*), or “for the maintenance of himself and his family” (*f*), [or “towards the support and maintenance of her two children until they shall

(*a*) *Barnes v. Grant*, 26 L. J. N. S. Ch. 92; S. C. 2 Jur. N. S. 1127; and see *Greene v. Greene*, 3 I. R. Eq. 98, 629; *Corbet v. Corbet*, 7 I. R. Eq. 456.

(*b*) *Wood v. Cox*, 1 Keen, 317; 2 M. & C. 684; *Irvine v. Sullivan*, 8 L. R. Eq. 673.

(*c*) *Sale v. Moore*, 1 Sim. 540; and see *Meredith v. Heneage*, id. 566; *Lawless v. Shaw*, Ll. & G. t. Sugden, 164; *Knight v. Knight*, 3 Beav. 148; *Williams v. Williams*, 1 Sim. N. S. 358; *Lefroy v. Flood*, 4 Ir. Chanc. Rep. 9; *Lambe v. Eames*, 10 L. R. Eq.

267; 6 L. R. Ch. App. 597; [*Stead v. Mellor*, 5 Ch. D. 225; *Re Adams and the Kensington Vestry*, 24 Ch. D. 199; 27 Ch. D. 394; *Mussoorie Bank v. Raynor*, 7 App. Cas. 321, 330.]

(*d*) *Benson v. Whittam*, 5 Sim. 22; but see *Leach v. Leach*, 13 Sim. 304; and see *Ryan v. Keogh*, 4 I. R. Eq. 357.

(*e*) *Thorp v. Owen*, 2 Hare, 607; see 611.

(*f*) *Re Robertson's Trust*, 6 W. R. 405; *Bond v. Dickinson*, 33 L. T. N. S. 221.